

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 24, 2026
8:30 AM/1:30 PM

14. TRAVIS BASKINS V. DESTINEE BASKINS

PFL20200285

Respondent filed a Request for Order (RFO) on July 7, 2026, seeking a motion to compel discovery responses, as well as sanctions. Upon review of the court file, the Proof of Service states “all documents for motion to compel [sic] all documents for tentative ruling notice.

Petitioner has not filed a Responsive Declaration.

The court drops the matter from calendar due to the lack of proper service. The court is unable to determine what documents were served on Petitioner based on the Proof of Service filed.

TENTATIVE RULING #14: THE MATTER IS DROPPED FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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15. DAVID BROOKE V. DEBBIE BROOKE

24FL0634

Respondent filed a Request for Order (RFO) seeking dismissal of the case, as Petitioner is deceased. There is no Proof of Service showing service on the estate of the Petitioner.

The court notes under Family Code section 310 a marriage is dissolved by the death of one of the parties. Except in circumstances where a bifurcated judgment has been entered, any dissolution action abates and the court no longer has jurisdiction to make any further determinations on the action. Here, there is no bifurcated judgment. Therefore, the dissolution is abated as a matter of law, and the Family Court no longer has jurisdiction in this matter.

The matter is dropped from calendar as moot.

TENTATIVE RULING #15: THE DISSOLUTION IS ABATED AS A MATTER OF LAW, AND THE FAMILY COURT NO LONGER HAS JURISDICTION IN THIS MATTER. THE MATTER IS DROPPED FROM CALENDAR AS MOOT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.